

made in respect of any such pf any such matter, the Tribunal shall make an inquiry into that matter and submit its report thereon to the Central Government.

Section 39 lays down that the Central Government may make a reference to the Tribunal in respect of matters specified in Sec. 37.

40. Assistance by the Central Government. - (1) The Central Government shall give to the Tribunal such assistance as it may require and shall also place at its disposal any information in the possession of the Central Government which that Government may think relevant to any matter before the Tribunal.

(2) Any parson duly authorized in this behalf by the Central Government shall be entitled to appear and be heard in any proceedings before the Tribunal.

Comment

Section 40 enjoins on the Central Government a duty to give assistance to the Tribunal.

41. Burden of proof, etc.—In the case of any complaint under Cl. (a) of Sec. 36.-

- (a) whenever it is shown that a railway administration charges one trader or class of traders or the traders in any local area, lower rates for the same or similar goods or lower charges for the same or similar services than it charges to other traders in any other local area, the burden of providing that such lower rate or charge does not amount to an undue preference, shall lie of on the railway administration:
- (b) In deciding whether a lower rate or charge does not amount to an undue preference, the Tribunal may, in addition to any other considerations affecting the case, take into consideration whether such lower rate or charge is necessary in the interests of the public.

Comments

Section 41(a) provides that where lower rates are charged, the burden of proving that such lower rate does not amount to undue preference shall lie on the railway administration.

(b) Provides that while considering the question of undue preference the Tribunal may take into consideration whether such lower rate charge is necessary in the interest of public.

The burden of proof to disapprove negligence lies on the bailee. HE has to prove that he exercised die care and was not negligent.